Subclass 190

Skilled Nominated visa

This visa lets nominated skilled workers live and work in Australia as permanent residents.

Step by step

Step 1

Before you apply

You must submit an expression of interest (EOI) through SkillSelect *(/visas/working-in-australia/skillselect)*to let us know you want to apply for this visa.

Help with your EOI

If you need help with your EOI you can use a registered migration agent or legal practitioner. For information on how to find someone to help you see Who can help you with your application *(/help-support/who-can-help-with-your-application/overview)*.

Step 1.1 – Before you submit your EOI

You must submit an expression of interest (EOI) to let us know you want to apply for this visa.

Check your occupation

Your occupation must be on the relevant list of eligible skilled occupations *(/visas/working-in-australia/skill-occupation-list)* for the Skilled Nominated (subclass 190) visa.

Get your skills assessed

You must have a suitable skills assessment *(/visas/working-in-australia/skills-assessment)* at the time we invite you to apply.

The assessment must be undertaken by an assessing authority listed against your occupation in the list of eligible skilled occupations *(/visas/working-in-australia/skill-occupation-list)*. You might have to

pay for the assessment.

To be eligible for a visa your skills assessment must have been obtained within the 3 years before the date of invitation. If the assessment was for a shorter period, that period must not have passed. We can't accept a skills assessment issued more than 3 years before the invitation date.

If your skills were assessed on the basis of a qualification you got in Australia when you held a student visa, the qualification must be from studying a course registered on CRICOS.

Medical practitioners

For medical practitioners we accept evidence of registration issued by the Australian Health Practitioner Regulation Agency. You must hold either:

- unconditional or general medical registration
- conditional specialist registration – which allows you to practice only in your particular specialty with no further training or supervision requirements

You must show that you hold this registration at the time we invite you to apply.

Barristers and solicitors

A suitable skills assessment for barristers and solicitors is evidence of admission to practice as a lawyer in an Australian state or territory.

The relevant legal admissions authority must have admitted you to practice at the time we invite you to apply.

Check your points

You must be able to obtain at least 65 points on our points test to be eligible for this visa. If you cannot obtain 65 points we will not invite you to apply.

If we invite you to apply for the visa, you must prove the claims you make in your EOI when we assess your application.

Use the points calculator *(/help-support/departmental-forms/online-forms/points-calculator)* to check how many points you might score

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Check you meet the other eligibility criteria

Check that you meet all other eligibility criteria for the visa.

If we invite you to apply for the visa, you will have to support the claims you make in your EOI as well as other criteria if you submit an application.

See what documents you will need to prove your claims before you submit your EOI in the Gather documents section below.

Step 1.2 – Submit your EOI

Submit your EOI via Skillselect *(https://skillselect.gov.au/SKILLSELECT/ExpressionOfInterest/PreReg/Start)*. You can submit it from within or outside Australia.

Your EOI is not a visa application. There is no fee for submitting an EOI.

Select the Skill Nominated (subclass 190) visa.

You will receive an email confirming your EOI has been submitted.

Step 1.3 – After you submit your EOI

SkillSelect will estimate your points score based on the claims made in your EOI.

You must have an estimated score of at least 65 points to be invited to apply for this visa.

Once your EOI is submitted it will be visible to state and territory governments. If you have the skills they need, a state or territory government agency might nominate you for the visa.

If you are nominated, you will get an invitation to apply for this visa.

Stay lawful

An EOI is not a visa application.

If you submit an EOI in Australia and your current visa is about to expire, you must apply for another visa to stay in Australia lawfully.

You are not eligible for a bridging visa because the EOI is not a visa application. You are only eligible for a bridging visa after you are invited and apply for this visa.

Make changes to your EOI

Let us know through SkillSelect *(https://skillselect.gov.au/SKILLSELECT/ExpressionOfInterest/PreReg/Start)* if:

- you want to apply for a different skilled visa
- your circumstances change - for example, if you change your occupation or your family structure changes
- you could score more points - for example, you have completed a higher qualification or gained new work experience
- your employment circumstances change and you are no longer working at least 20 hours per week in your nominated occupation

You must be able to meet the points score on your invitation letter if we invite you to apply or you will not be granted a visa.

SkillSelect will update your indicative points score if you make changes to your EOI. You can change your EOI at any time before we invite you to apply for a visa.

Step 1.4 - Receive an invitation to apply for visa

We allocate places for the skilled migration program to meet the Australian Government's migration planning levels.

Once invited, you have 60 calendar days to apply for the visa. We cannot extend this time.

You could receive an invitation up to 2 years after submitting an EOI. If we invite you to apply you will receive an email from SkillSelect. Getting an invitation does not mean you will be granted the visa.

The invitation will include the number of points you must score based on your EOI claims.

After you apply for the visa, you must show that you:

- can meet the points score on your invitation (which will include proving any claims you made in your EOI) and
- can meet all other eligibility criteria

If you do not apply for the visa after two invitations, your EOI will be removed from SkillSelect.

We will not process your visa application if you are 45 at the time of your invitation.

If you can't show you meet the points score or other eligibility criteria

If you can't show you meet the points score on your invitation or the other visa criteria, then do not apply for the visa.

Your EOI will be suspended if an invitation is issued, but you can update information once the 60-day invitation period has passed. If this is your second invitation, you will have to submit another EOI if you still want the visa.

Get help with your application

Only some people can help you with your application. If you appoint someone to give you immigration assistance they must be:

- a registered migration agent *(/help-support/who-can-help-with-your-application/using-a-migration-agent)*
- a legal practitioner *(/help-support/who-can-help-with-your-application/using-a-legal-practitioner)*, or
- an exempt person *(/help-support/who-can-help-with-your-application/exempt-person)*.

You can appoint anyone to receive documents *(/help-support/who-can-help-with-your-application/authorised-recipents)* on your behalf relating to your visa matter.

Step 2

Gather your documents

You will need to provide documents to support the claims you make in your EOI and show you meet the other visa criteria.

Provide accurate information

Provide accurate information. See what may happen if you can't prove your identity or do not provide true information *(/help-support/meeting-our-requirements/providing-accurate-information)*.

Identity documents

Provide the pages of your current passport showing your photo, personal details, and passport issue and expiry dates.

Also provide:

- a national identity card, if you have one
- proof of change of name

Documents that prove a change of name include:

- a marriage or divorce certificate
- change of name documents from an Australian Registry of Births, Deaths and Marriages, or the relevant overseas authority
- documents that show other names you have been known by

Relationship documents

If you are or have been married, widowed, divorced or permanently separated, provide proof such as divorce documents, death certificates, separation documents or statutory declarations.

If your partner or dependent children are not included in this application, tell us the reason why (for example, they already hold Australian citizenship or are a permanent resident)

Character documents

Provide an Australian police certificate if you have spent a total of 12 months or more in Australia in the last 10 years since you turned 16.

We only accept complete disclosure National Police Certificates issued by the Australian Federal Police *(https://www.afp.gov.au/what-we-do/services/criminal-records/national-police-checks)*. We do not accept standard disclosure certificates or national police certificates issued by Australian state or territory police.

For immigration purposes, Australian police certificates are valid for 12 months from the date of issue.

Also provide:

- an overseas police certificate from every country, including your home country, where you spent a total of 12 months or more in the last 10 years since you turned 16
- military service records or discharge papers if you served in the armed forces of any country

Complete and provide the following forms:

- Form 80 Personal particulars for assessment including character assessment (596KB PDF) *(/form-listing/forms/80.pdf)*
- Form 1221 Additional personal particulars information (331KB PDF) *(/form-listing/forms/1221.pdf)*

Competent English documents

Provide proof you have at least competent English *(/help-support/meeting-our-requirements/english-language/competent-english)* at time of invitation for this visa.

Partner documents

We need to see evidence of your partner's identity and relationship with you.

Provide:

- identity documents and photos
- character documents
- marriage certificate, if applicable
- documents about other relationships, if applicable

For de facto relationship provide either:

- evidence that your relationship is registered by an Australian State or Territory
- enough documents to prove you have been in a de facto relationship with your partner for at least 12 months before you apply

For both married and de facto applicants you must provide evidence that you are in a genuine and continuing relationship. Evidence can include but is not limited to:

- joint bank account statements
- billing accounts in joint names
- joint leases or mortgages
- documents that show your partner has lived at the same address as you

Proof your partner has functional English

You don't have to provide any documents to prove functional English if your partner is a citizen of and holds a valid passport from:

- the United Kingdom
- the Republic of Ireland
- the United States
- Canada
- New Zealand

Otherwise, provide proof your partner has functional English *(/help-support/meeting-our-requirements/english-language/functional-english)*.

If you can't show us your partner has functional English, you will need to pay the second instalment of the visa application charge when we ask you to.

Dependants under 18 documents

For every dependant 18 years old or younger who is applying with you, provide:

- copies of birth certificates or the family book showing the names of both parents of all your dependent children
- copies of the adoption paper, if applicable.

Parental responsibility documents

You must get consent for any applicant under 18 years of age to migrate to Australia from anyone who:

- has a legal right to decide where the child lives and
- is not coming to Australia with the child

They must complete either:

- Form 1229 Consent form to grant an Australian visa to a child under the age of 18 years (276KB PDF) *(/form-listing/forms/1229.pdf)*
- statutory declaration *(https://www.ag.gov.au/Publications/Statutory-declarations/Pages/default.aspx)* giving their consent for the child to migrate to Australia on this visa

Alternatively, you can show us:

- an Australian court order that allows your child to migrate to Australia, or
- that the laws of your home country allow them to migrate

Include:

- an identity document that shows the signature and photo of the person who completed the form or declaration, such as a passport or driver's licence
- adoption papers or other court documents if applicable

You don't have to prove that your dependant under 18 years of age has functional English.

Note: If your child is likely to turn 18 while your application is being processed, you will need to provide evidence they are dependent on you. See the section 'Dependants over 18 documents' below for further information. A child who turns 18 while your application is being processed and who is not dependent on you cannot satisfy the criteria for this visa.

Dependants over 18 documents

To include your child who is over 18 in your visa application, they must be:

- over 18 years of age but not yet turned 23, and dependent on you or your partner, or
- over 23 years of age and unable to earn a living to support themselves due to physical or cognitive limitations and dependent on you or your partner

If your child is likely to turn 23 while your application is being processed, you will need to provide evidence they are dependent on you due to disability.

Provide:

- identity documents
- documents about their other relationships, if applicable

You must also provide proof the child is dependent on you.

- proof of your relationship with the dependant such as a birth certificate or adoption papers
- a completed Form 47a Details of a child or other dependent family member aged 18 years or over (307KB PDF) *(/form-listing/forms/47a.pdf)*
- proof of financial dependency such as bank statements, money transfers and rent receipts
- if the child is aged 23 or is likely to turn 23 while your application is being processed, you must also provide a report from a qualified medical practitioner that states they are dependent on you or your partner due to the total or partial loss of their bodily or mental functions

Note: A child who turns 23 while your application is being processed and who does not meet these requirements cannot satisfy the criteria for this visa.

Proof your dependant has functional English

You don't have to provide any documents to prove functional English if your dependant is a citizen of and holds a valid passport from:

- the United Kingdom
- the Republic of Ireland
- the United States
- Canada
- New Zealand

Otherwise, provide proof your dependant has functional English *(/help-support/meeting-our-requirements/english-language/functional-english)*.

If you can't show us your dependant has functional English, you will need to pay the second instalment of the visa application charge when we ask you to.

Skills assessment documents

You must provide documents that support the claims you made in your EOI. To check the documents you need use the points table *(/help-support/departmental-forms/online-forms/points-calculator)*. Depending on your claims this could include evidence of your:

- Skills assessment
- English language skills
- Australian and/or overseas skilled employment
- Educational qualifications
- Satisfying the Australian study requirement
- Specialist education
- Accredited community language
- Study in regional Australia
- Partner skills
- Professional Year in Australia

Delegates of the Minister will now accept a suitable skills assessment for an applicant's nominated skilled occupation which has been obtained within the 60 day invitation period.

This change of approach is made as a result of the decision of *Thapa v Minister for Immigration, Citizenship, Migrant Services and Multicultural Affairs* [2021] FCCA 686 (*Thapa*). The Minister will administer the *Migration Regulations 1994* in accordance with the decision in *Thapa*, but the Minister reserves the right to make submissions in a Court that *Thapa* was wrongly decided.

Medical practitioners

One of these certificates issued by the Australian Health Practitioner Regulation Agency:

- unconditional or general medical registration
- conditional specialist registration – which allows you to practice only in your speciality with no further training or supervision requirements

You must be registered at the time we invite you to apply.

Barristers and Solicitors

Proof of admission to practice as a lawyer in the relevant state or territory. You must be admitted to practice at the time we invite you to apply.

Expression of Interest (EOI) documents

You must provide documents to prove all of the claims you made in your EOI. Use the points table *(/help-support/departmental-forms/online-forms/points-calculator)* to check the documents you need.

Employment Documents

To claim points for skilled employment experience, you must provide evidence of the employment period you are claiming. The evidence must relate to employment before the date of invitation. Evidence can include:

- employment references
- employment contracts
- payslips
- tax statements
- group certificates or payment summaries
- superannuation information.

Employment references must:

- be issued on the organisation's official letterhead
- include the organisation's full street address, not a PO Box
- include the organisation's phone number, email address and website, where available
- show the exact period of employment
- state each position held
- state whether the employment was permanent or temporary, and full time or part time
- describe main duties
- state the salary earned
- include the typed or stamped name and position of the person authorised to sign the reference below their signature
- include the direct contact number of the person writing the reference.

We will not accept a reference that only includes an illegible signature.

Tell us you are getting help

To nominate someone to:

- receive your correspondence, use Form 956A Appointment or withdrawal of an authorised recipient (301KB PDF) *(/form-listing/forms/956a.pdf)*
- provide immigration assistance, use Form 956 Appointment of a registered migration agent, legal practitioner or exempt person (308KB PDF) *(/form-listing/forms/956.pdf)*.

Upload your written notification or your forms to ImmiAccount *(/help-support/applying-online-or-on-paper/overview)*.

Prepare your documents

Translate

Have all non-English documents translated into English.

Provide original and translated documents in your application.

Translators in Australia must be accredited by the National Accreditation Authority for Translators and Interpreters *(https://www.naati.com.au/)*.

Translators outside Australia do not have to be accredited. But on each translation, they must include their:

- full name
- address and telephone number
- qualifications and experience in the language they are translating

These details must be in English.

Note: You do not need to have any documents certified.

Scan or photograph

Scan or photograph all documents (English and non-English) in colour.

The scans and photos must be clear.

If a document is more than one page, save it all as one file.

Step 3

Apply for the visa

When you have your invitation you can apply online. You can be in or outside Australia.

You have 60 days from the date of your invitation to apply for the visa.

Provide accurate information

Provide accurate information. See what may happen when you cannot prove your identity or do not provide true information *(/help-support/meeting-our-requirements/providing-accurate-information)*.

Apply for this visa online in ImmiAccount

1. Log into your SkillSelect *(https://skillselect.gov.au/SKILLSELECT/ExpressionOfInterest/PreReg/Start)* account. In SkillSelect, click on the 'Apply for visa' button. This will take you to our online system, ImmiAccount.
2. Log in or create an ImmiAccount. Your ImmiAccount login and password will not be the same as your SkillSelect login and password.
3. Attach your documents *(/help-support/applying-online-or-on-paper/online)*.
4. Pay the application charge *(/help-support/applying-online-or-on-paper/online/how-to-pay)*. We will not process your application until you pay the first instalment of the visa application charge.
5. Note your transaction reference number (TRN).

Step 4

After you apply

We will let you know when we have received your application.

If you are granted a bridging visa you will receive notification of your visa grant.

Status updates

We do not give updates on applications within the standard processing time.

You can check if we need more information from you in ImmiAccount *(/help-support/applying-online-or-on-paper/online)*.

Travel after you apply

If you are in Australia, you do not have to tell us if you want to travel outside Australia while we process your application. This is because you can be outside Australia when we make a decision.

But if you leave Australia, make sure your visa allows you to return. To see if you can return on your current visa, check VEVO *(/visas/already-have-a-visa/check-visa-details-and-conditions)*.

Learn about visa expiry *(/visas/visa-about-to-expire)*.

If you applied outside Australia, don't arrange travel to Australia, leave your job or sell your home until we advise you in writing that you have been granted the visa

Health exams

If you didn't have health examinations *(/help-support/meeting-our-requirements/health)* before you applied, we will let you know if you need them. Check ImmiAccount *(/help-support/applying-online-or-on-paper/online)*.

Biometrics

We might ask for biometrics. We will let you know if you need to provide them.

Attach more information

If you did not attach all documents when you applied, attach them as soon as you can in ImmiAccount *(/help-support/applying-online-or-on-paper/online/how-to-pay)*.

We might also ask you to provide more information; however; we are not obliged to do so and may make a decision on your application without requesting more documents.

Stay lawful

Make sure you stay lawful in Australia by holding a valid visa while we process your application.

When you applied for this visa, you were granted a Bridging visa A (BVA). If your current visa expires before we decide on your application, the BVA will come into effect. You can stay in Australia on the BVA while we process your new visa application.

Do not ask to have the visa you currently hold cancelled. If your visa is cancelled:

- you will be staying in Australia unlawfully
- your BVA will cease

Learn more about visa expiry *(/visas/visa-about-to-expire)*.

Pay the second instalment

If you need to pay a second instalment, pay it when we send you the invoice.

Add family

You can add members of the family unit to your application after you apply but before we decide on your visa.

Use Form 1436 Adding an additional applicant after lodgement (481KB PDF) *(/form-listing/forms/1436.pdf)*, pay using ImmiAccount, attach the form and supporting documents to your ImmiAccount.

Family members who apply for the visa must meet our health *(/help-support/meeting-our-requirements/health)* and character *(/help-support/meeting-our-requirements/character)* requirements.

Family members who are not coming to Australia do have to meet our character *(/help-support/meeting-our-requirements/character)* requirement and might have to meet our health *(/help-support/meeting-our-requirements/health)* requirement.

Newborn children

If your child is born after you submit your application but before we decide on your visa, you must tell us as soon as possible.

Find out what to do your child is born after you apply *(/change-in-situation/had-a-baby)*.

Mistakes on your application

You must tell us as soon as possible if you made a mistake on your application.

Complete Form 1023 Notification of incorrect answers (168KB PDF) *(/form-listing/forms/1023.pdf)* and attach it to your application in ImmiAccount.

Help with your application

Let us know if you no longer want someone to:

- receive your correspondence - complete Form 956A Appointment or withdrawal of an authorised recipient (301KB PDF) *(/form-listing/forms/956a.pdf)*
- provide immigration advice - complete Form 956 Appointment of a registered migration agent, legal practitioner or exempt person (308KB PDF) *(/form-listing/forms/956.pdf)*.

Upload your written notification or your forms to ImmiAccount *(/help-support/applying-online-or-on-paper/overview)*.

For more information see Who can help you with your application *(/help-support/who-can-help-with-your-application/overview)*.

Tell us if things change

Things you need to let us know about after you have applied include:

- changes to your phone number, email, address or passport
- changes to your marital or de facto status
- the birth of a child
- you want to withdraw your application

See how to tell us if your situation changes *(/change-in-situation)*.

Step 5

Visa outcome

You can be in or outside Australia when we decide your visa application but not in immigration clearance. We will let you know our decision in writing.

If we grant your visa, we will tell you:

- your visa grant number
- the date your visa starts
- your visa conditions, if applicable

Keep a copy of the decision.

If we refuse your visa, we will tell you:

- why we refused the visa
- whether you have a right to a review of the decision

We will not refund the application charge if we refuse your application.